IN THE SUPREME COURT OF INDIA

ANTICIPATORY BAIL DURATION JURISDICTION

(Constitution Bench (5 Judges))

CASE NUMBER: Special Leave Petition (Crl.) Nos. 7281-7282 of 2017 **LQIN: SCIN010072812017**

REPORTABLE CITATION: (2020) 5 SCC 1 DATE: January 29, 2020

CORAM: Hon'ble Arun Mishra, Indira Banerjee, Vineet Saran, M.R. Shah, S. Ravindra Bhat, JJ.

Sushila Aggarwal and Others v. State (NCT of Delhi) and Another

Sushila Aggarwal and Others ...PETITIONER(S)

VERSUS

State (NCT of Delhi) and Another ...RESPONDENT(S)

HEADNOTE & STATUTORY PROVISIONS CONSIDERED

Acts: Code of Criminal Procedure, 1973 | Sections: Section 438 CrPC, Section 173(2) CrPC

Five-Judge Constitution Bench settling the law that anticipatory bail does not automatically terminate upon filing of the chargesheet and normally continues till the conclusion of trial. Once a court grants anticipatory bail, that protection usually lasts throughout the entire criminal trial, not just until the police complete their investigation.

RATIO DECIDENDI & BINDING LEGAL PRINCIPLE

The protection granted to a person under Section 438 CrPC should not invariably be limited to a fixed period; it should inure in favour of the accused without any restriction on time and normally endure till the conclusion of trial. The mere filing of a charge sheet does not automatically compel the accused to surrender and apply for regular bail.

FINAL JUDICIAL DISPOSITION

DISPOSITION: Anticipatory Bail Life Sustained Till End of Trial (Outcome: Answered in Affirmative)

Precedential Authority: Good Law (5-Judge Constitution Bench)

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